

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #16	CCRB Case #: 201600068	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/18/2015 12:18 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/18/2017	Precinct: 62		
Date/Time CV Reported Thu, 12/24/2015 11:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/05/2016 11:06 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Degaetano	29244	951663	062 PCT
2. Officers			062 PCT
3. POM Stanley Mateo	08797	947804	NARCBBS
4. DTS Alicja Bobrowska	00818	936219	062 PCT
5. POF Jacqueline Catalano	03330	948768	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jeremy Berson	00406	918752	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Degaetano	Abuse: Pollice Officer Richard Degaetano entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Stanley Mateo	Abuse: Police Officer Stanley Mateo entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Stanley Mateo	Force: Police Officer Stanley Mateo used a chokehold against § 87(2)(b)	C . Unsubstantiated
D . POM Richard Degaetano	Abuse: Police Officer Richard Degaetano entered and searched § 87(2)(b) in Brooklyn.	D . Unsubstantiated
E . POM Stanley Mateo	Abuse: Police Officer Stanley Mateo entered and searched § 87(2)(b) in Brooklyn.	E . Unsubstantiated
F . POF Jacqueline Catalano	Abuse: Police Officer Jacqueline Catalano entered and searched § 87(2)(b) in Brooklyn.	F . Unsubstantiated
G . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	G . Officer(s) Unidentified
H . POM Stanley Mateo	Abuse: Police Officer Stanley Mateo entered and searched § 87(2)(b) in Brooklyn.	H . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 24, 2015, § 87(2)(b) filed this complaint via telephone with the Internal Affairs Bureau (IAB). On January 5, 2016, the CCRB received this complaint under IAB Log 2015-40728 (Board Review 01). On December 18, 2015, at approximately 12:18 p.m., officers from the 62nd Precinct responded to a complaint of an assault (Board Review 02) at § 87(2)(b) in Brooklyn. The following allegations resulted:

PO Richard DeGaetano and PO Stanley Mateo entered § 87(2)(b) in Brooklyn (Allegation A and B). PO Stanley Mateo used a chokehold against § 87(2)(b) (Allegation C). PO Richard DeGaetano, PO Stanley Mateo, and PO Jacqueline Catalano entered and searched § 87(2)(b) in Brooklyn (Allegation D, E and F). Officers entered and searched § 87(2)(b) in Brooklyn (Allegations G). PO Stanley Mateo entered and searched § 87(2)(b) in Brooklyn (Allegation H). § 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) was arrested as a result of this incident (Board Review 03). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

There is no available video footage of the incident.

This case was originally assigned to former Investigator Leanne Fornelli. On October 26, 2016, the case was reassigned to the undersigned investigator subsequent to Investigator Fornelli's departure from the agency.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b)'s arrest rendered this case ineligible for mediation.
- As of January 19, 2017, no Notice of Claim has been filed by § 87(2)(b) in regard to this incident (Board Review 04).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (Board Review 06).

- PO Stanley Mateo has been a member of service for 8 years and has 6 allegations pleaded against him. None of these allegations were substantiated. § 87(4-b), § 87(2)(g)
- Det. Alijcia Bobrowska has been a member of service for twelve years and has had 4 allegations pleaded against her. Of those 4 allegations, 1 was substantiated.
 - In CCRB 201510229, a force allegation was substantiated against Det. Bobrowska. The Board recommended Command Discipline B against her. The NYPD disposition is still pending as of this writing.

Finding and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) indicated that he was pulled from his apartment by hands. He could not indicate which officers performed this action. PO DeGaetano (Board Review 07) affirmed that he pulled § 87(2)(b) from his apartment, and that he was assisted by Officer Stanley Mateo. PO Mateo (Board Review 08) affirmed that he assisted PO DeGaetano in pulling § 87(2)(b) from his apartment. § 87(2)(g)

§ 87(2)(g) § 87(2)(b) (Board Review 12) alleged that a Spanish male placed him in a chokehold. PO Mateo's officer photograph lists him as a 5'8", 160 pound, Hispanic male. The investigation concluded that PO Mateo is the subject of this allegation because the other officers on scene were all white males.

§ 87(2)(b) alleged that when he requested a jacket, officers entered his apartment. He could not substantively describe them. PO DeGaetano, PO Mateo, and PO Catalano (Board Review 11) admitted that they escorted § 87(2)(b) into his apartment to get his jacket. The investigation could not definitely establish the identity of any additional officers that entered § 87(2)(b)'s apartment. § 87(2)(g)

Potential Issues

On November 4, 2016, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) was interviewed in the presence of his criminal defense lawyer, § 87(2)(b). During the interview, § 87(2)(b) provided various court transcriptions and documents, one being the affidavit for § 87(2)(b)'s superintendent, § 87(2)(b). § 87(2)(b)'s affidavit was not signed and was not notarized.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority- Police Officer Richard DeGaetano entered § 87(2)(b) in Brooklyn.

Allegation B: Abuse of Authority- Police Officer Stanley Mateo entered § 87(2)(b) in Brooklyn.

§ 87(2)(g)

It is established that § 87(2)(b) was arrested at § 87(2)(b) in Brooklyn, without a warrant for his arrest. At the time of his arrest, § 87(2)(b) was inside his apartment. Officers went to the location, and one officer knocked on the apartment door while holding a box and pretending to be a UPS delivery person. § 87(2)(b) opened the door and was arrested.

§ 87(2)(b) (Board Review 12) reported that upon seeing what he believed to be a UPS delivery person, he opened his apartment the door approximately one foot wide, and put his arm out of the doorway to grab the package. § 87(2)(b) had one arm out of the door, and the other arm behind the door. When § 87(2)(b) extended his arm out of the door, he felt hands pulling on him. He was then pulled into the hallway.

Officer DeGaetano (Board Review 07) stated that he pretended to be a UPS delivery person because he knew it would get § 87(2)(b) to open the door. When § 87(2)(b) opened the door, he opened the door two feet wide, enough to have his body in view, and stood inside of the doorframe. When Officer DeGaetano announced himself as a police officer, § 87(2)(b) tried to run back into the apartment. PO DeGaetano and PO Stanley Mateo grabbed § 87(2)(b) by his arms and pulled him into the hallway. PO DeGaetano explained, § 87(2)(b) “was not able to get too far at all. It was more of like a lean back when I had my hand on his arm.”

PO Mateo likewise stated that § 87(2)(b) was in the threshold when he was arrested. He stated that as PO DeGaetano knocked on the door, he was standing off to the side approximately 12 feet away from the door. He stated that when § 87(2)(b) opened the door, he leaned out of the doorway with his upper torso area, and was past the threshold of the door. He later described the area that § 87(2)(b) was standing in as the doorframe. PO DeGaetano informed § 87(2)(b) that he was from the police department, and grabbed § 87(2)(b)'s left arm and pulled him from the apartment. § 87(2)(b) attempted to run back into his apartment; he did not recall whether § 87(2)(b)'s body was inside or outside of the apartment when he tried to run.

Of the two witness officers that were present, Det. Bobrowska concurred that § 87(2)(b) was standing in the threshold of the door when opened the door when PO DeGaetano grabbed him and placed him in handcuffs in the hallway. The account by Sgt. Berson, conversely, put § 87(2)(b) far beyond the threshold of the apartment door at the time his arrest was effectuated. Sgt. Berson stated that when § 87(2)(b) opened the door to his apartment and walked such that his entire body was in the hallway. When § 87(2)(b) was informed that they were the police, he attempted to run back into his apartment, but was unable to do so, and so no part of his body re-entered the apartment. Sgt. Berson's account could not be credited since it differs so markedly from those of the other officers.

In Payton v. New York, 445 U.S. 573 (1980), the Supreme Court held that a suspect could not be arrested in his home without a search warrant, even when they have probable cause to make the arrest. It further notes that “the Fourth Amendment has drawn a firm line at the entrance to the house. Absent exigent circumstances, that threshold may not reasonably be crossed without a warrant” (Board Review 13).

In People v. Garvin, 130 A.D.3d 644 (2015) (Board Review 14), and the People v. Reynoso, 2 N.Y.3d 820 (2004) (Board Review 15), the courts examined cases where a defendant was arrested at the threshold of their residence after they voluntarily exited, and determined that the warrantless arrests were permissible. This is consistent with the finding in United States v. Santana, 427 U.S. 38 (1976) (Board Review 16), where the courts determined that if a defendant’s encounter with the police began outside the home or even on the threshold of it, the defendant could not avoid arrest by fleeing into his home.

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED] it is recommended that **Allegation A** be closed as **Exonerated**. § 87(2)(g) [REDACTED]

[REDACTED] it is recommended that **Allegation B** be closed as **Exonerated**.

Allegation C: Force-Police Officer Stanley Mateo used a chokehold against § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] (Board Review 12) alleged that after he was pulled out of his apartment, he was pushing and pulling away from the officer’s grip when he fell onto the ground and onto one knee. When § 87(2)(b) [REDACTED] stood up, an officer “gave me one of those Eric Garner chokeholds, not one where he grabbed me from behind, and put me in a sleeper hold, but he grabbed me from the side of my neck and pulled me downwards.” § 87(2)(b) [REDACTED] stated that the officer wrapped one arm around the front of his neck, and placed his other arm behind § 87(2)(b) [REDACTED]’s neck. The officer then latched his hands together. § 87(2)(b) [REDACTED] remained in a chokehold until he was handcuffed, which took approximately 30 seconds. § 87(2)(b) [REDACTED] confirmed that his breathing was not restricted by this.

While PO Mateo (Board Review 08) indicated that he assisted in handcuffing § 87(2)(b) he indicated that when he observed the struggle between § 87(2)(b) and PO DeGaetano, he approached and grabbed § 87(2)(b) by the right arm. He then pulled § 87(2)(b) completely out of the apartment. He testified that when he grabbed § 87(2)(b) he grabbed the area between his elbow and wrist, and did not make any contact with any other part of his body. PO DeGaetano and PO Mateo then placed § 87(2)(b) in handcuffs. PO Mateo denied using any additional force to put § 87(2)(b) in handcuffs, and stated that he did not make any contact with § 87(2)(b)'s neck while placing him in handcuffs. PO Mateo also denied wrapping his arm around § 87(2)(b)'s neck, and stated that § 87(2)(b) did not complain that he was in pain at any time during his apprehension.

All interviewed officers corroborated PO Mateo's testimony that he did not make any contact with § 87(2)(b)'s neck.

§ 87(2)(g)

it is recommended that **Allegation C** be closed as *Unsubstantiated*

Allegation D: Abuse of Authority- Police Officer Richard DeGaetano entered and searched § 87(2)(b) in Brooklyn.

Allegation E: Abuse of Authority – Police Officer Stanley Mateo entered and searched § 87(2)(b) in Brooklyn.

Allegation F: Abuse of Authority – Police Officer Jacqueline Catalano entered and searched § 87(2)(b) in Brooklyn.

Allegation G: Abuse of Authority – Officers entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

It is undisputed that officers entered § 87(2)(b)'s apartment after § 87(2)(b) requested that officers obtain a jacket for him. § 87(2)(g)

After § 87(2)(b) was placed in handcuffs, he told the officers that he wanted a jacket from inside the apartment, saying, "I have no jacket! I have a coat rack behind the door; just grab my jacket right there." § 87(2)(b) noted that directly behind his apartment door, there is a coat rack with jackets. An officer replied, "Okay I got you, where is your jacket?" After this, officers entered § 87(2)(b)'s apartment and went into his hallway closet. § 87(2)(b) said, "Get out of my fucking closets! What are you going into my closets for? I told you there was a coat rack right behind the door." § 87(2)(b) watched as the officers went inside his kitchen and various areas of the apartment.

§ 87(2)(b) provided a second account of this later in his CCRB statement. In this account, he said that he asked the officers if he could go back inside his apartment and he was told that he could not re-enter the apartment because weapons had been located. PO1 entered his apartment, and exited and handed the officers in the hallway a leather bomber jacket with a fur collar. The leather jacket had been hanging in his closet, which led § 87(2)(b) to believe that the officers went through his belongings. Approximately five minutes later, the superintendent of the building § 87(2)(b) exited the elevator and came onto the floor. § 87(2)(b) said, “§ 87(2)(b) do me a favor. Close my door, get my keys, and throw these guys out of my apartment.”

PO DeGaetano (Board Review 07) stated that at the time of his arrest, § 87(2)(b) (Board Review 12) who was wearing his pajamas, asked if he could go back inside to get a jacket and his identification. He did not ask § 87(2)(b) to enter his apartment before this. He also denied entering the apartment at any time before this. He indicated to the CCRB that § 87(2)(b) could have requested to get his clothing himself, but officers would have not allowed him to do so. Once § 87(2)(b) expressed his need for clothing, officers informed him that he would need to be escorted into the apartment to retrieve these items. § 87(2)(b) in response said, “Okay.” Officers then escorted § 87(2)(b) into the apartment, and went straight to his bedroom. PO DeGaetano did not go anywhere else in the apartment “besides the kitchen by default because it was right there.” The remaining officers stood in the kitchen. He could not see what they were doing from § 87(2)(b)'s bedroom. He later said he could not recall which officers were in the kitchen, and which officers were in § 87(2)(b)'s bedroom with him. He also could not recall where § 87(2)(b)'s clothing items were found and whether or not he had to open any drawers to retrieve the items. PO DeGaetano said, “I think we had § 87(2)(b) in the hallway, and we asked him where his clothes were, and he said it was in the bedroom.” He later said he could not recall if § 87(2)(b) was in the bedroom when he retrieved his clothing. There was no further search conducted of § 87(2)(b)'s bedroom or the apartment besides to retrieve his clothing. At no time while officers were inside the apartment did § 87(2)(b) object to them being inside. PO DeGaetano had no additional reasoning for entering § 87(2)(b)'s apartment besides to retrieve his clothing. While inside the apartment, PO DeGaetano observed several knives in plain view inside the apartment, including some on the kitchen table and others mounted on the wall. He also observed a lit marijuana cigarette on the coffee table in the living room area, adjacent to the kitchen.

PO Mateo (Board Review 08) stated that PO DeGaetano asked § 87(2)(b) if he would like to get clothes from his apartment. PO Mateo corroborated PO DeGaetano's testimony regarding officers informing § 87(2)(b) that he would be escorted into the apartment and § 87(2)(b)'s response. § 87(2)(b) did not say where the clothes could be found specifically. PO Mateo did not have any additional reasoning for entering § 87(2)(b)'s apartment besides to get his clothing. As an officer began walking towards the direction of his bedroom, § 87(2)(b) said, “Don't go in my room. There is so some clothes right there on the couch.” PO Mateo stated that

§ 87(2)(b) was very adamant about officers not entering his room and could not remember which officer began walking towards the direction of his bedroom. Instead officers “grabbed the clothes that were on the couch because they were already accessible.” Officers also got a pair of pants and shoes for § 87(2)(b). PO Mateo denied going anywhere else in the apartment besides the living room area, and denied seeing any officer do so. PO Mateo did not look around § 87(2)(b)'s apartment and did not open anything and did not see any officer look around or open anything. He denied hearing § 87(2)(b) object to officers being inside his apartment at any time during the incident.

Det. Bobrowska (Board Review 09) said that once § 87(2)(b) was handcuffed, he expressed that he wanted to get clothes and shoes from inside the apartment. § 87(2)(b) requested to get these items himself. Several officers then escorted him inside the apartment to get his clothes. She could not recall if § 87(2)(b) objected to officers escorting him inside the apartment, or if she assisted officers with escorting § 87(2)(b) inside his apartment. Det. Bobrowska was never made aware of where § 87(2)(b)'s clothing was retrieved from, and could not recall what she was doing during that time. § 87(2)(b) was ultimately able to get his clothes and identification.

Sgt. Berson (Board Review 10) indicated that he directed officers to escort § 87(2)(b) who was handcuffed at this time, into his apartment so he could get a jacket and possibly shoes. He could not recall which officer he gave these instructions to, but it may have been PO DeGaetano and PO Mateo. Sgt. Berson did not enter § 87(2)(b)'s apartment because “there was no need for three to four cops to go into his apartment.” While inside the apartment, § 87(2)(b) did not object to officers being inside his apartment, instead, Sgt. Berson noted, “He actually invited us inside his apartment so he could get his jacket.” Officers escorted § 87(2)(b) directly to his living room. Sgt. Berson did not see where § 87(2)(b)'s jacket was recovered from, but he indicated that he saw officers get § 87(2)(b)'s jacket. He later said, “I just saw them coming out with the jacket.” Within 15 seconds, officers were able to get § 87(2)(b)'s jacket, place it over his shoulders and escort him back into the hallway.

PO Catalano (Board Review 11) said that once placed in handcuffs, § 87(2)(b) needed clothes. PO Catalano could not recall whether § 87(2)(b) specifically asked officers for his clothes, but is certain he did not have shoes on when he opened the door. She could not recall whether she asked § 87(2)(b) to enter inside his apartment, whether § 87(2)(b) informed officers where his clothes could be found, nor could she recall if officers ever explained to § 87(2)(b) that he would need to be escorted inside his apartment to retrieve his clothes. PO Catalano stated to the CCRB that § 87(2)(b) was compliant during this time. PO Catalano entered § 87(2)(b)'s apartment but she could not recall where in the apartment she went upon entering. She also could not recall § 87(2)(b) ever objecting to officers being inside his apartment.

§ 87(2)(b) (Board Review 18), who did not provide a sworn statement to the CCRB, stated he was inside the building elevator, when the elevator stopped on the third floor. When the doors

opened, § 87(2)(b) saw approximately six plain clothes officers with their shields on the display, and § 87(2)(b) who was already handcuffed standing in front of the elevator. An officer then instructed § 87(2)(b) to exit the elevator and take the stairs to wherever he was going. § 87(2)(b) assumed the officers were going to use the elevator to escort § 87(2)(b) outside, and immediately walked to the stairwell which was directly across from the elevator. § 87(2)(b) was screaming during this time and said, § 87(2)(b) "lock my door." In response, an officer instructed § 87(2)(b) to leave, and he did so immediately because he did not want to be involved. In § 87(2)(b)'s affidavit (Board Review 19), provided to the investigation by § 87(2)(b), § 87(2)(b)'s criminal attorney, § 87(2)(b) stated that, § 87(2)(b) repeatedly told the police to get out of his apartment. He was also yelling at me asking me to remove police from his apartment and to close and lock his door. The police would not allow me to approach their location."

§ 87(2)(b) stated that he provided the officers with limited consent to retrieve a jacket from a coat rack on the inside of his apartment door. Conversely, Officer DeGaetano stated that § 87(2)(b) was escorted into the apartment and directed the officers to retrieve clothing from his bedroom and never complained about the officers' presence in his apartment. Officer DeGaetano's account was supported by those of Det. Bobrowska and Sgt. Berson, who confirmed that § 87(2)(b) was escorted inside. Sgt. Berson denied that § 87(2)(b) objected to their presence in the apartment, while PO Bobrowska could not recall whether he objected to the officers being present in the apartment. Officer Mateo also confirmed that § 87(2)(b) was escorted into the apartment. However, he reported that since § 87(2)(b) objected to officers entering his bedroom, clothes were retrieved from the living room. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Generally, officers entering a residence must possess a warrant. Exceptions to this rule include situations involving consent, an emergency, hot pursuit or exigent circumstances. People v. Lewis, 94 A.D.2d 44 (1st Dept. 1983) (Board Review 20).

§ 87(2)(g)

§ 87(2)(b) is it recommended that **Allegation D, E, F** be closed as ***Unsubstantiated***, and **Allegation G** be closed as ***Officers Unidentified***.

Allegation H: Abuse of Authority- PO Stanley Mateo entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

PO Mateo (Board Review 08) stated that he remained inside § 87(2)(b) in Brooklyn, to safeguard § 87(2)(b)'s apartment until PO DeGaetano (Board Review 07) could obtain a search warrant for the location. PO Mateo stated to the CCRB, "I safeguarded the apartment from the inside because there were two fire escapes, leading into his apartment. There were also 3-4 windows opened. One window in particular that led to the fire escape. To prevent

anyone from coming through from the fire escape, I safeguarded the apartment from the inside.” PO Mateo remained inside the apartment alone. He claimed that no search was done of the apartment during this time. PO Mateo remained inside the living room to prevent any evidence from being destroyed. He was not specifically directed by anyone to safeguard the apartment from the inside; he stated “It was just something I determined.” PO Mateo remained inside the apartment from 12:30 p.m. to 5:30 p.m. During this time, he observed antique swords and helmets inside the apartment. He did not observe any additional illegal contraband. PO Mateo did not look inside any drawers, cabinets or closets at any time before the search warrant was obtained. PO Mateo did not enter any bedrooms in the apartment before the search warrant was obtained and remained in the living room.

Sgt. Berson (Board Review 10) confirmed that he directed PO Mateo to secure the apartment until the search warrant was obtained. Sgt. Berson told PO Mateo (Board Review 08) that “he was going to explore getting a search warrant, for him to stay there and he would contact him with an update in regards to whether or not the warrant was obtained.” PO Mateo (Board Review 08) was then given the keys to § 87(2)(b)'s apartment. He did not give PO Mateo any specific instructions of where he was supposed to be. Sgt. Berson stated that safeguarding an apartment entails “locking the door and having an officer stay there to make sure that nobody comes in and disturbs it. We treat it like a crime scene.” There was no specific reason why PO Mateo was specifically assigned to safeguard the apartment. He later said, “At some point Det. Bobrowska was there but she had to go with PO DeGaetano to get the search warrant because she had more experience with drafting search warrants.” Sgt. Berson did not direct PO Mateo to safeguard the apartment from the inside, and he was never made aware that an officer safeguarded the apartment from the inside. Sgt. Berson did not check on PO Mateo while the warrant was being obtained because he felt there was no need to do so. PO Mateo did not inform Sgt. Berson about what happened while the warrant was being applied for. While the warrant was being applied for, Sgt. Berson was at the 62nd Precinct stationhouse completing “search warrant related paperwork.”

§ 87(2)(b) testified (Board Review 19), “While some officers left the building with § 87(2)(b) several other officers remained inside § 87(2)(b)'s apartment. The police remained inside § 87(2)(b)'s apartment for several hours. While the police were inside § 87(2)(b)'s apartment, I heard a lot of noises that sounded like many things were being moved around the apartment.”

In People v. Musto 996 N.Y.S.2d 263 2012, N.Y. (Board Review 21) , the court has outlined three elements to determine whether exigent circumstances exist to justify entry without a warrant: The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. Secondly, the search must not be primarily motivated by intent to arrest and seize evidence. Lastly, there must be some reasonable basis, approximating to probable cause, to associate the emergency with the area to be searched.

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted] it is recommended that

Allegation H be closed as ***Substantiated***

§ 87(4-b), § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 16

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date